

The Claremont City Council held a meeting on Wednesday, September 23, 2020, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Assistant Mayor Damren at 6:30 p.m.

Assistant Mayor Damren read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

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Members of the Council present were:

Ward I Councilor Andrew O'Hearne – Chambers, Councilors Sweetser & Stone
At-Large Councilor Abigail Kier – Home, mother, father, stepfather, son, husband
At-Large Councilor Erica Sweetser – Chambers, Councilors O'Hearne & Stone
Assistant Mayor Allen Damren – Home, alone
At-Large Councilor Debora Matteau – Home, alone
At-Large Councilor Nicholas Koloski – Work, alone
Ward II Councilor James Contois – Home, alone
Ward III Councilor Jonathan Stone – Chambers, Councilors Sweetser & O'Hearne

Absent:

Mayor Charlene Lovett

Also present:

Edward Morris, City Manager

AGENDA CHANGES

Assistant Mayor Damren asked to remove Old Business B. LSR-Welfare Costs, No Residency Requirement, and C. LSR-Requirement for Communities to Pay into NH Retirement System

as they need more work. There were no objections.

Mr. Morris said that Councilor Contois had asked that during Community Power Aggregation Presentation that he be allowed to discuss a letter he had sent to the Council. Assistant Mayor Damren explained the letter has to be returned by Friday. Councilor Contois said regarding Community Aggregation, that according to County Manager Derek Ferland and Henry Herndon, the PUC (Public Utilities Commission) is moving in a direction not advantageous to Community Aggregation. That is the letter the Council will be requested to approve.

A motion was made by Councilor Matteau and seconded by Councilor Sweetser to suspend Council Rules.

Councilor O'Hearne was concerned about the number of times Council would request to suspend its Rules tonight.

Roll call vote:

O'Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Motion carried 6-2.

Councilor O'Hearne made a point of order to make a motion to add that letter to the discussion.

A motion was made by Councilor Contois and seconded by Councilor Matteau to add that letter of support to the discussion.

Roll call vote:

O'Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Motion carried 6-2.

MAYOR'S NOTES

National Recovery Month Proclamation

Assistant Mayor Damren read a proclamation for National Recovery Month.

Dan Wargo, Program Director for the Center for Recovery Resources, TLC, talked briefly about some of the programs that are offered through his organization.

Assistant Mayor Damren read Mayor Lovett's notes.

1. Source to Sea Clean-up – Thanks to the Conservation Commission for their participation in the annual Source to Sea Clean-up of the Connecticut River watershed. Conservation Commissioners, along with family and friends, picked up trash at Ashley's Landing, and the easement/brook area near Tractor Supply. The Source to Sea Clean-Up event will continue throughout the month of September. Anyone wishing to contribute to this year's effort is invited to contact the Chair of the Conservation Commission, Gary Dickerman. He has a list of hot spots and is working with various groups to get those areas cleaned up.
2. A ribbon cutting was held last Friday on September 18 for Helping Worries. There will be a ribbon cutting ceremony this Friday, September 25, for the Goddard Block.
3. Senator Shaheen will be in Claremont this Friday to meet with a local childcare provider and discuss the impact that COVID-19 has had on childcare providers in the region.
4. The Nashua Conference on the Prevention of Childhood Lead Poisoning will take place from 8 a.m. to 12 noon on September 30. Among the speakers will be members of the Claremont Lead Action Team. The conference will be held via Zoom and is free and open to the public.

CITY MANAGER'S REPORT

- **Thank you** – Thanked the Fire Department members of Group #3 (Captain Mike Zombeck, Lt. Brian Rapp, Fire Fighter Mike Snide and Fire Fighter Kenny Smith). This year he has asked department directors to share with their staff the One City Concept. In short, he's asking all City Staff to keep their eyes open for litter problems, dumping, graffiti, vandalism, and other issues City Staff should address. On Sunday, September 13th, while testing fire hoses, the members of Group #3, under the direction of Captain Mike Zombeck, picked up trash along the roadside at the Sid-Clarke Industrial Park. The trash had been accumulating for some time and they took action and solved the problem themselves. This kind of proactive approach is very much appreciated.
- **Primary Election** – Thanked City Clerk, Gwen Melcher, her staff and all the election volunteers for hosting a good primary election. The City issued 467 Absentee Ballots which is an unprecedented number for a primary election. City-wide voter turnout was 34% compared to 21% in 2018 and 19% in 2016. Considering all the extra COVID precautions and procedures, the election went very smoothly. Assistant Mayor Damren said that Councilor Sweetser volunteered her time at the election tables.

- **139/147 Main Street** – One bid for the wall shoring for 147 Main Street was received from Pine Hill Construction, which came in at \$243,000. CDFA likes to see three bids, so we made the case that the one bid that we did receive is reasonable, and that we did not receive any bids on the last attempt. The City reminded them that this is an emergency grant, and there is an imminent danger with this building, so it is prudent to move forward with the bid we received. On September 16th, we received the approval from CDFA and we will be moving forward completing contracts and getting a date scheduled for demolition.
- **Voluntary Water Restrictions** - Due to continuing drought conditions, the City of Claremont is asking residents to implement voluntary water conservation methods:
 - Refrain from washing down outside areas such as sidewalks and patios.
 - Water plants the minimum amount required.
 - Wash only full loads in clothes and dishwashers.
 - Use spring-loaded nozzles on garden hoses to reduce unneeded flow.
 - Identify and repair all water leaks.
 - Limit vehicle and boat washing to the minimum.
 - Take showers rather than baths.
 - Refrain from leaving faucets running while shaving, brushing teeth, or while rinsing dishes.
 - Install water-flow restrictive devices in showerheads.
 - Install water-saving devices such as plastic bottles or commercial units in toilet tanks to reduce volume.

This notice is not meant to alarm the water users. Currently, the City has an adequate amount of water storage; however, the Water Department is trying to be pro-active due to the ongoing drought conditions. The City used to have to pump water from the Sugar River to supplement our reservoir system. With the upgrades done to the system over the past few years, the City is trying to conserve enough water to allow the reservoirs to recover, so we will not have to switch over to pumping water from the river.
- **Hydrant Testing** – The Fire Department, in collaboration with the Department of Public Works, has decided to delay the flow testing of all City-owned fire hydrants until the spring of 2021. Due to the continued drought conditions the State of New Hampshire is experiencing, it would not be prudent to flow water unnecessarily when we are asking citizens to conserve water.
- **Mercantile Inspections** - The Fire Department will be restarting the “Mercantile Life Safety Inspection Program” in October. Scheduled appointments will be mailed to business owners beginning in September giving ample notice of the date and time of the department’s arrival. Inspections will be incorporated into the daily shift work schedule, providing both a training opportunity for the Fire Department staff and to ensure safe buildings for the public to enter.
- **CDBG COVID Grant** – City Staff had been working with local non-profits to prepare a COVID-19 CDBG grant. We were scrambling to warn a public hearing for the September 23 Council meeting in hopes of making Round 1 of the grant process. We were not able to get everything done in time, and will be applying during Round 2, which should be released in mid-October.

- **COVID-19 Update** – As of the time this report was written, the State of New Hampshire has had a slight uptick in positive COVID-19 cases mostly surrounding the return to school and college campuses. Even with this uptick, NH remains at a relatively low rate of infection. In order to maintain these low numbers, we must stay vigilant in our efforts to control the spread of the virus. According to the DHHS website, we currently only have 2 active cases in all of Sullivan County. If we continue to keep good hand hygiene and sanitization efforts, maintain social distancing, and wear masks when in public, we can continue to keep our numbers low and protect the health of the citizens of Claremont.
- As of today, there are five cases in Sullivan County. There are no current cases in Claremont.
- He reminded the City Council and public that Valley Regional Hospital is now the NH HHS testing site. The Hospital asks that all people register for a testing time. For pre-registration or to make an appointment, please visit <https://www.vrh.org/covid-19-information/>. For additional questions, please call the COVID Hotline at 603-542-7850. Information is also available on the City's webpage and other media sites, with links to an online registration portal.

Mr. Morris said the Tax Deed Auction will be held September 26, 11 a.m., at the Claremont Savings Bank Community Center (CSBCC). Open house hours for all of the properties will be Friday, 9 a.m.-4 p.m.

Regarding the Main Street building shoring and demolition, Mr. Morris believes it will be done before snowfall. The plan is to start shoring October 5th.

CITIZEN'S FORUM

Prashanna Sangroula, Ward 2, said he's been in Claremont 3 ½ years. He suggested using Dartmouth College for the betterment of the City's education system. He said there is a lot of housing in Claremont and suggested bringing in a bus service for the students. He said there is almost everything in this City they would need, such as the hospital.

Rebecca MacKenzie, Ward 2, talked about water in Claremont and that only 2.5% of the earth's water is fresh and 2/3 of that is in the ice cap and glacier, conveying water's preciousness.

OLD BUSINESS

Ordinance 576 Amend Merit Plan – Second Reading

The purpose of this proposed change is to create a position which is titled, the Adverse Childhood Experience Response Team (ACERT) Coordinator. This will be a new position within the City of Claremont's Police Department, however, no grade or salary ranges will be impacted by this amendment as this position will be slotted into the City's existing Grade 8 of

the Non-Union Employee Pay Schedule – Attachment C [which document is on file at the City Manager's office]. The current maximum salary for a Grade 8 employee is \$56,829 and the minimum salary is \$37,362.60.

The amendment seeks to create this position in support of the Greater Claremont Area ACERT Program. The responsibilities of this employee will largely be associated with identifying and offering assistance to those families and children who are exposed to violence or other adverse conditions. The creation and development of this position as well as the financial obligations associated with this hiring are to be shared by and through a partnership that the City maintains with the Newport Police Department, Turning Points Network, the Sullivan County Child Advocacy Center, the Claremont School District and the TLC Family Resource Center.

Enactment of this Ordinance will amend the City of Claremont Merit Plan accordingly and institute a full job description for the position of Adverse Childhood Experiences Response Team Coordinator. This change is requested by the City Manager.

Mr. Morris noted that the position description and the minutes of the Personnel Advisory Board (PAB) were included in the Council packet. The PAB recommended adding this position.

A motion was made by Councilor Kier and seconded by Councilor Matteau to suspend Council Rules in order to only read the Explanation of Proposed Action.

Councilor O'Hearne was against suspending Council Rules to read the only the Explanation of Proposed Action.

Assistant Mayor Damren said the entire ordinance should be read at the third reading.

Roll call vote:

O'Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Motion carried 6-2.

Councilor Kier read the Explanation of Proposed Action into the record.

A motion was made by Councilor Matteau and seconded by Councilor Kier to adopt Ordinance 576 Amend Merit Plan.

Roll call vote:

O'Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Motion carried 6-2.

LSR-Welfare Costs, No Residency Requirement

Withdrawn.

LSR-Requirement for Communities to Pay into NH Retirement System

Withdrawn

Community Power Aggregation Presentation

Henry Herndon, Director of Local Energy Solutions with Clean Energy New Hampshire, said that Claremont one of 27 municipal members. Mr. Herndon said that new legislation (RSA 53-E) has gone into effect which has created opportunities for aggregation of electric customers which gives authorities of municipalities to procure electricity in bulk on behalf of its citizens. Electricity is delivered by the utility company and they maintain the poles and wires. The benefit is local control and the ability to procure green electricity and to build new renewables. We may be able to develop new solar locally. The first step is to establish an Electric Aggregation Committee. The Committee will develop an Electric Aggregation Plan, and then the Council would vote on whether or not to approve that Plan. There is a statewide effort to develop Community Power New Hampshire (CPNH) which would be a municipal association for the logistics and administration of negotiating the electricity purchases. Many local communities are working together to form CPNH, which would be a membership group.

Councilor Contois said he recently received a letter from Mr. Herndon regarding a letter of support to be sent to the PUC, because some of the proposed rules severely limit, and undermine, the ability to launch these programs.

Mr. Herndon said the letter is to inform the PUC that there are many communities that intend to exercise their local control authorities under this new legislation. The specific benefit for this is market competition. One proposed regulation would limit that timing flexibility.

Councilor Contois said the request is for the PUC to receive the Council's letter of support no later than September 25th.

Mr. Morris said he emailed the letter to all Councilors yesterday.

Councilor Sweetser attended her first Energy Advisory Committee (EAC) meeting and they are gathering information. Claremont can be a tier 2 city to watch what tier 1 cities are doing. This is not a decision we are making right now.

Regarding the Electric Aggregation Committee, Mr. Morris would like the Council to move forward with the Committee in order for the members to be involved in these talks. He wants to be involved in the conversation and discussions moving forward. It doesn't commit us to anything.

Councilor Matteau said this folds into the Energy Chapter of the Master Plan.

There was a discussion about whether or not the group would be a subcommittee of the EAC.

Ms. MacKenzie said that Mayor Lovett asked the EAC to review this and share with the Council. The City is not committing to anything other than to create a committee, which will then get information back to the Council. Regarding the letter to the PUC, the EAC decided to sign its own letter and is hoping the Council will decide to do one as well.

A motion was made by Councilor Kier and seconded by Councilor Koloski to create the committee.

Councilors had questions about who the committee would answer to and what the make-up of the committee would be. Councilors would like the City Manager to submit a proposal of the make-up of the committee and whether or not it would be a subcommittee of the EAC.

A motion was made by Councilor Stone to table forming the committee. No second was received. Motion failed.

Councilor Kier retracted her motion. Councilor Koloski retracted his second.

Assistant Mayor Damren thinks it best to go back to Mr. Morris for recommendations to be brought back to the Council at the first meeting in October.

A motion was made Councilor Contois and seconded by Councilor Sweetser that the City sign onto the letter to the Public Utilities Commission.

Roll call vote:

O'Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Motion carried 6-2.

Amended and Restated Resolution 2021-9 – Public Hearing

WHEREAS the Claremont City Council approved and adopted Resolution 2021-9 on August 26, 2020 authorizing the City to issue general obligations bonds and notes in anticipation thereof in a principal amount not to exceed \$1,000,000.00 (the “Bonds”) to finance costs to acquire and install new Community Dispatch Center (“Center”) equipment, to remove existing equipment and to make Center improvements and renovations in connection with the foregoing, either at the existing Center or as part of a regional Center option located in another building; and as applicable to renovate the building selected for such regional Center option (the “Project”); and

WHEREAS an amendment to Resolution 2021-9 is required,

NOW THEREFORE the seventh (7th) paragraph on page one (1) is hereby amended and restated as follows:

The Bonds are to be executed and delivered by the Treasurer and the City Manager under the official seal of the City attested by the City Clerk (“Clerk”) or her designated deputy or assistant, and otherwise are to be in such form and contain such terms and provisions not inconsistent herewith, as they shall approve, their approval to be conclusively evidenced by their execution thereof, and any signature thereon may be by facsimile to the extent permitted by law;

All other provisions of Resolution 2021-9 shall remain in full force and effect.

The Clerk is authorized and directed to file an attested copy of this Amended and Restated Resolution in the record of proceedings of the City Council, which record shall be open to public inspection; and

All actions undertaken by the City consistent with this resolution are hereby confirmed, ratified and approved.

(2/3 Vote Required)

Mr. Morris said Resolutions 2021-9 and 2021-10 were forwarded to Drummond Woodsum’s bond counsel and one paragraph talked about the Council signing the bond documents. That is not the way bond resolutions have been done in the past. The authority is given to the City Manager and the City Staff to sign those documents. The City usually uses Devine Millimet & Branch as bond counsel.

Assistant Mayor Damren noted the original resolutions are in effect, with the exception of these changes.

A motion was made by Councilor Contois and seconded by Councilor Kier to adopt Amended and Restated Resolution 2021-9.

Councilor Contois read the resolution into the record.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

Councilor O’Hearne asked how much money was spent for legal services regarding these resolutions. Mr. Morris will get that information.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Amended and Restated Resolution 2021-10 – Public Hearing

WHEREAS the Claremont City Council approved and adopted Resolution 2021-10 on August 26, 2020 authorizing the City to issue general obligations bonds and notes in anticipation thereof in a principal amount not to exceed \$4,800,000.00 (the “Bonds”) to finance costs to construct and equip renovations and improvements to and for (i) Pleasant Street, including parking and streetscape improvements; (ii) streets and intersections in the vicinity, and signage in the vicinity and elsewhere, to provide for the redirecting and flow of truck traffic; and (iii) drainage systems and facilities in the vicinity of the foregoing, including separation of combined sewer and drain water drainage (the “Project”); and

WHEREAS an amendment to Resolution 2021-10 is required,

NOW THEREFORE the seventh (7th) paragraph on page one (1) is hereby amended and restated as follows:

The Bonds are to be executed and delivered by the Treasurer and the City Manager under the official seal of the City attested by the City Clerk (“Clerk”) or her designated deputy or assistant, and otherwise are to be in such form and contain such terms and provisions not inconsistent herewith, as they shall approve, their approval to be conclusively evidenced by their execution thereof, and any signature thereon may be by facsimile to the extent permitted by law;

All other provisions of Resolution 2021-10 shall remain in full force and effect.

The Clerk is authorized and directed to file an attested copy of this Amended and Restated Resolution in the record of proceedings of the City Council, which record shall be open to public inspection; and

All actions undertaken by the City consistent with this resolution are hereby confirmed, ratified and approved. (2/3 Vote Required)

A motion was made by Councilor Kier and seconded by Councilor Matteau to adopt Amended and Restated Resolution 2021-10.

Councilor Kier read the resolution into the record.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

NEW BUSINESS

Resolution 2021-16 Airport Obstruction Removal Project – Public Hearing

WHEREAS the City is undertaking the engineering for the Airport Obstruction Removal Runway Approach Project (the "Project") at the Claremont Municipal Airport; and

WHEREAS the City has applied for a grant for the engineering of said Project from the Federal Aviation Administration (the "FAA") in the amount of \$170,000.00; and

WHEREAS the City would like to accept and expend said grant funds;

NOW THEREFORE BE IT RESOLVED to raise, appropriate and expend the sum of \$170,000.00 with 5% or \$8,500, as the City's share of the project, to be taken from the Airport Reserve Account and the remaining funds to come from the FAA grant, SBG- SBG-02-19-2021 (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Mr. Morris gave a brief explanation for this and the following resolution.

Fire Chief Bryan Burr said this is the next phase in the removal of vegetation (trees, stumps) from Federally protected air space. This resolution will allow the City to move forward with the engineering phase of the obstruction removal.

A motion was made by Councilor Sweetser and seconded by Councilor Koloski to adopt Resolution 2021-16 Airport Obstruction Removal Project.

Councilor Contois read the resolution into the record.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

At 8:23 p.m., Council recessed to check the audio in Council Chambers and returned at 8:24 p.m.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Resolution 2021-17 Airport Runway Rehabilitation Project – Public Hearing

WHEREAS the City is undertaking the engineering for the Airport Runway Rehabilitation Project (the "Project") at the Claremont Municipal Airport; and

WHEREAS the City has applied for a grant for the engineering of said Project from the Federal Aviation Administration (the "FAA") in the amount of \$500,000.00; and

WHEREAS the City would like to now accept and expend said grant funds;

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the FAA grant (Project SBG-02-20-2021) Airport Runway Rehabilitation Project in the amount of \$500,000.00; and

BE IT FURTHER RESOLVED to raise, appropriate and expend the sum of \$500,000.00 with 5% or \$25,000, as the City's share of the project, to be taken from the Airport Reserve Account and the remaining funds to come from the FAA grant, SBG-02-20-2021 (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Chief Burr said this is the engineering phase of the Runway Rehabilitation Project.

A motion was made by Councilor Contois and seconded by Councilor Stone to adopt Resolution 2021-17 Airport Runway Rehabilitation Project.

Councilor Contois read the resolution into the record.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Ordinance 577 Property Tax Credit for Veterans – First Reading

The purpose of this proposed change is to increase the benefit provided to veterans or their surviving spouses who qualify for said tax credit. If adopted, the credit shall increase from an annual tax credit of \$125 to the new standard set at \$500. In addition, the date for the submission of an amended permanent application shall be set for December 1 of every calendar year.

This amendment is intended to recognize and appreciate the dedication as well as sacrifice of our nation's veterans.

Enactment of this Ordinance will amend the City of Claremont's Code as to Article II, Division 2 of Chapter 18 (Sec. 18-43). This change is requested by the City Manager.

Mr. Morris said at its October 23, 2019, meeting the Council voted to make changes to the property tax credit for veterans and property tax exemptions for the elderly. If approved, Ordinances 577 and 578 will update the City Code.

Stephan Hamilton, Interim Assessor, said this is housekeeping. This is to update ordinance with action previously taken by the Council.

Assistant Mayor Damren said he would entertain a motion to suspend Council Rules in order to read only the Explanation of Proposed Action as the whole ordinance would be read at the second reading.

A motion was made by Councilor Koloski and seconded by Councilor Kier to suspend Council Rules.

Councilor O'Hearne questioned suspending Council Rules for an ordinance that is only one page long.

Roll call vote:

O'Hearne - no

Kier - yes

Sweetser - no

Damren - yes

Matteau - no

Koloski - no

Contois - yes

Stone - no

Motion failed 3-5.

A motion was made by Councilor O'Hearne and seconded by Councilor Contois to adopt Ordinance 577 Property Tax Credit for Veterans on first reading.

Councilor O'Hearne read the ordinance into the record.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Ordinance 578 Property Tax Exemptions for Elderly – First Reading

The purpose of this proposed change is to increase the qualification income(s) and asset holdings for those individuals seeking an elderly exemption from real estate taxes from the City of Claremont.

The motivation behind this amendment is to simply account for inflation and maintain a more current set of qualifications for potential applicants. The last change to these qualifications occurred in 2017 and the City's Assessor is of the belief that an update to same is warranted at this time.

Enactment of this Ordinance will amend the City of Claremont's Code as to Article II, Division 4 of Chapter 18 (Sec. 18-58). This change is requested by the City Manager.

A motion was made by Councilor O'Hearne and seconded by Councilor Matteau to adopt Ordinance 578 Property Tax Exemptions for Elderly on first reading.

Councilor O'Hearne read the ordinance into the record.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Acceptance of Multi-Year Lease for Vehicles & Equipment

Mr. Morris said this is a multi-year lease agreement for vehicles and equipment for Public Works and Parks Departments.

Mary Walter, Finance Director, said there were two proposals and the City took the lower cost proposal. The City has to close on this by September 30th. The interest is 2.94%. The first year's payment is already appropriated in the budget. The \$459,000 is an estimate based on what directors said they needed replaced. We have not actually gone out to bid, yet.

Councilor O'Hearne asked how many vehicles are being replaced for Highway and Parks. Ms. Walter would have to check and come back with the information.

Resolution 2021-18 Rail Trail Project – Public Hearing

WHEREAS by Resolution 2007-14, the City Council established a City Forest Management Fund (the Fund), pursuant to RSA 34:1-a, for the maintenance, operation and management of city-owned undeveloped land, to be funded by the proceeds from the sale of timber harvested according to the City's Forest Management Plan; and

WHEREAS the City Council finds that the Rail Trail along Washington Street runs in close proximity to S.G. Reed Truck Services, Inc. (Reed), 287 Washington Street, map/lot 133-56; Maurice's Auto-Truck & Trailer (Maurice), 297 and 299 Washington Street, map/lot 133-57, 133-58, and 133-59; and R&G Properties, 313 Washington Street, map/lot 133-60, and is not very well delineated. The City is attempting to make this area safer for all users by defining the Rail Trail, to include adding guardrails and gates at each end of this stretch of the Rail Trail in order to keep motorized vehicles off this portion of the Rail Trail.

WHEREAS the City Council further finds that improvements to the Rail Trail is the type of management of city-owned land intended by establishment of the Fund;

NOW THEREFORE BE IT RESOLVED to raise, appropriate and expend the sum of up to \$25,000 for Rail Trail improvements and upgrades to the portion of the Rail Trail listed above.

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to withdraw the sum of up to \$25,000 from the City Forest Management Fund for the purpose of Rail Trail Improvements along Washington Street (to have no impact on the tax rate), and also to undertake all actions and execute all documents that may be required to implement this resolution. *(2/3 Vote Required)*

Mr. Morris said this is asking the Council for money out of the reserve fund in order to supplement the grant for the Rail Trail Project on Washington Street.

Mark Brislin, Parks and Recreation Director, said the City was originally awarded funding for the Recreational Rail Trail Grant Program for approximately \$23,000 to complete work on the Rail Trail along Washington Street that runs in close proximity with Maurice Trailer Sales and Reed Trucking. The project will make that area safer. It will add gates, hardpack and a guardrail. The City is working with the state and property owners to make sure it is safe for people to use the Trail.

A motion was made by Councilor Contois and seconded by Councilor Kier to adopt Resolution 2021-18 Rail Trail Project.

Councilor Contois read the resolution into the record.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone -

Motion carried 8-0.

Acceptance of Multi-Year Lease for Vehicles & Equipment – Continued

Ms. Walter said they are replacing in Parks Department a tractor, a mower, and an aerator; in the Highway Department they are replacing an F-550, an F-350, and an International 7400.

Councilor O’Hearne asked the City Manager to send the Council a copy of the lease agreement.

A motion was made by Councilor Contois and seconded by Councilor Kier that the Claremont City Council hereby authorizes the City Manager to enter into multi-year lease

agreement, an Escrow Agreement and related Exhibits and attachments with Municipal Asset Management, Inc. for vehicles and equipment for the Public Works and Parks Departments, in an amount not to exceed \$459,000.00, the expenditure for the first year of the lease being \$63,359.32 said costs having been raised and appropriated in the 2021 budget. The proposed lease agreement contains a termination clause in the event of non-appropriation of sufficient funds for any subsequent year of the lease.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Discussion of Purchasing Policy Recommendations

Assistant Mayor Damren said the Finance Committee looked specifically at the dollar amounts. It was the recommendation from department staff that these were outdated and needed to be raised. The Finance Committee called other communities and made recommendations accordingly.

Councilor Stone said the Policy Committee felt the proposed amounts were reasonable.

Councilor O'Hearne thanked both committees for their work on this.

Assistant Mayor Damren said this would be forwarded to the City Manager's office for formatting and then be brought back to the Council.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Assistant Mayor Damren said a special meeting of the Council was scheduled for Wednesday, September 30th. He is also looking for agreement from Councilors when to meet in October regarding the City Manager's evaluation. He reminded Councilors to let Ms. Russell know available dates.

Councilors asked to make sure their phone numbers and email addresses were listed on the new website.

Assistant Mayor Damren would like a presentation to the Council by the website developer.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:13 p.m., a motion was made by Councilor Kier and seconded by Councilor Matteau to adjourn.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council